

1.

CASE #	CASE NAME	HEARING NAME
CVRI2501757	ADAME vs WALMART INC.	MOTION FOR ORDER AUTHORIZING CORONER TO RELEASE PHOTOS OF DECEDENT

Tentative Ruling:

The unopposed motion is granted.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2502988	CREDITORS ADJUSTMENT BUREAU, INC., vs GARNET STONE ROOFING SERVICES, INC.	MOTION TO QUASH SERVICE OF SUMMONS ON COMPLAINT

Tentative Ruling:

The motion is granted to set aside the default and default judgment for reason Defendant Zarate has demonstrated that she was not properly served with summons and the original Complaint because Plaintiff failed to comply with Code of Civil Procedure section 412.30. "The court may ... on motion of either party after notice to the other party set aside any void judgment or order." (Code Civ. Proc., § 473(d).) "[A] default judgment [or default] entered against a defendant who was not served with a summons in the manner prescribed by statute is void." (*Dill v. Berquist Construction Co.* (1994) 24 Cal.App.4th 1426, 1444.) The proof of service is stricken. A case management conference is scheduled for October 13, 2026 at 8:30 am in Dept. 3

3.

CASE #	CASE NAME	HEARING NAME
CVRI2503201	MENENDEZ vs VICTORIA CLUB	MOTION TO SET ASIDE DISMISSAL

Tentative Ruling:

This matter was filed on 6/4/2025. The complaint was to be served within 60 days. The Court issued an OSC re: proof of service on 1/2/26 set for 2/4/26. The Plaintiff filed a declaration pursuant to Local Rule 3.116 on 1/28/26 advising that 60 days was needed to complete service. The Court eventually continued the CMC and OSC to 4/9/2026. No further declaration was filed. The Court dismissed this matter on 4/8/2026 with notice being given to the Plaintiff. This motion was filed over 3 months later on 7/16/2026. The Defendant has specially appeared to oppose this request.

The Plaintiff seeks to set aside the dismissal based upon attorney neglect. However, there is a requirement that the neglect is excusable. In this case, Plaintiff argues that